
San Diego Regional Water Quality Control Board

May 12, 2021

Mr. Bobby Graziano
Pauma Valley Community
Service District
33129 Cole Grade Road
Pauma Valley, CA 92061
Sent by email: Bobby.Graziano@gmail.com

In reply to refer to/attn:
247809:CKomeylyan

Subject: Notice of Applicability for Order WQ 2014-0153-DWQ, Pauma Valley Treatment Plant

Mr. Graziano:

This Notice of Applicability (NOA) is to inform Pauma Valley Community Service District (Discharger) that the Pauma Valley Treatment Plant (Facility) is anticipated to be enrolled in State Water Resources Control Board Order WQ 2014-0153-DWQ, *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order). The Facility's enrollment in the General Order is effective upon adoption of the California Regional Water Quality Control Board, San Diego Region (San Diego Water Board), Tentative Order No. R9-2021-0037, *An Order Rescinding Order No. R9-2006-0049, Waste Discharge Requirements for the Pauma Valley Community Services District, Pauma Valley Treatment Plant, San Diego County* (Tentative Order No. R9-2021-0037). Adoption of Tentative Order No. R9-2021-0037 will be considered at the regularly scheduled San Diego Water Board meeting on June 9, 2021.

The San Diego Water Board reviewed Order No. R9-2006-0049, *Waste Discharge Requirements for the Pauma Valley Community Services District, Pauma Valley Treatment Plant, San Diego County* (Order No. R9-2006-0049) and the Discharger's record of compliance with Order No. R9-2006-0049. Order No. R9-2006-0049 is outdated and is not as protective of water quality as the requirements specified in the General Order. Implementation of the General Order provides a more appropriate and consistent statewide approach to regulating small domestic wastewater treatment systems. While the Discharger may request to be regulated under individual waste discharge requirements, the Facility's enrollment in the General Order allows the San Diego Water Board to effectively and efficiently regulate discharges from small domestic wastewater treatment systems, while prioritizing the agency's limited resources.

CELESTE CANTÚ, CHAIR | DAVID GIBSON, EXECUTIVE OFFICER

The Facility meets the enrollment eligibility criteria included in the General Order. An electronic copy of the General Order is available online at the following website:

https://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf

NOA FINDINGS AND REQUIREMENTS – The Discharger must comply with all applicable requirements in the General Order and any additional requirements included in this NOA, upon the effective date of enrollment in the General Order.

1. FACILITY AND DISCHARGE DESCRIPTION

The Facility is located at 33129 Cole Grade Road, Pauma Valley, California, within the Pauma Hydrologic Sub-Area of the Monserate Hydrologic Area of the San Luis Rey Hydrologic Unit. The Facility's onsite wastewater treatment system consists of an Aero-Mod package treatment plant operating as two parallel domestic wastewater treatment trains, each with multiple stage aeration basins, aerobic digesters, and clarifiers. The effluent from both treatment trains discharges to four onsite percolation ponds. The maximum five-year average effluent flowrate for the Facility is approximately 60,000 gallons per day (gpd).

2. CALIFORNIA ENVIRONMENTAL QUALITY ACT

The General Order regulates new and existing small domestic wastewater treatment systems. In accordance with the California Environmental Quality Act (CEQA) and consistent with Finding No. 32.a of the General Order, the action to enroll the Facility is categorically exempt from CEQA pursuant to California Code of Regulations (CCR) title 14, section 15301 (ongoing or existing projects), section 15302 (replacement or reconstruction of existing utility systems), and section 15303 (new construction or conversion of small structures).

3. FACILITY REQUIREMENTS

The operator of the Facility must be familiar with the requirements contained in the General Order, this NOA, and the Monitoring and Reporting Program (MRP) in section 5 below.

The Discharger must comply with the prohibitions and specifications contained within the General Order, which are applicable to all wastewater systems. The Discharger also must comply with the following General Order specification applicable to the Facility's specific treatment and/or disposal system.

- a. Required Technical Reports/Plans. The Discharger must submit the following plans:
 - i. A Spill Prevention and Emergency Response Plan consistent with the requirements of General Order Provision E.1.a. The San Diego Water Board

must receive the Spill Prevention and Emergency Response Plan by 5:00 p.m. on September 7, 2021.

- ii. A Sampling and Analysis Plan consistent with the requirements of General Order Provision E.1.b. The San Diego Water Board must receive the Sampling and Analysis Plan by 5:00 p.m. on September 7, 2021.
- iii. A Sludge Management Plan consistent with the requirements of General Order Provision E.1.c. The San Diego Water Board must receive the Sludge Management Plan by 5:00 p.m. on September 7, 2021.

Upon approval of these plans by the San Diego Water Board, the Discharger must implement the plans.

- b. Prohibitions. The Discharger must comply with all prohibitions listed in section A of the General Order and all applicable requirements in the *Water Quality Control Plan for the San Diego Basin* (Basin Plan).¹
- c. Setback Requirements. The Discharger must ensure new discharges maintain the applicable setbacks specified in Table 3 of the General Order.
- d. Additional Applicable Requirements of the General Order. The Discharger must comply with all the requirements listed in sections B.1 (All Wastewater Systems), B.3 (Aerobic Treatment Units), B.4 (Activated Sludge Systems), B.5 (Pond Systems), and B.8 (Sludge/Solids/Biosolids Disposal) of the General Order.

4. EFFLUENT LIMITATIONS

The Discharger must not allow effluent concentrations to exceed the limits listed in Table 1 below.

Table 1. Effluent Limitations

Constituent	Unit ¹	Limit ²
Biochemical Oxygen Demand (BOD)	mg/L	30 (monthly average) 45 (7-day average)
Total Suspended Solids (TSS)	mg/L	30 (monthly average) 45 (7-day average)
Total Nitrogen as Nitrogen	mg/L	10
Monthly Average of Daily Flowrate	gpd	100,000

Table Notes:

- 1) mg/L denotes milligrams per liter.

¹ Website to Basin Plan:

https://www.waterboards.ca.gov/sandiego/water_issues/programs/basin_plan/docs/R9_Basin_Plan.pdf

- 2) The limits presented are average monthly limits unless otherwise specified.

5. MONITORING AND REPORTING PROGRAM

The Discharger must comply with the monitoring requirements below, which are based on the MRP of the General Order.

- a. Reporting Frequency. The Discharger must submit quarterly and annual monitoring reports as described in sections A and B of Attachment C to the General Order. The Discharger's first quarterly report is the April – July 2021 Quarterly Report, which must be submitted to the San Diego Water Board by 5:00 p.m. on September 1, 2021. The Discharger's first annual report is the 2021 Annual Report, which must be submitted to the San Diego Water Board by March 1, 2022.
- b. Effluent Monitoring. The Discharger must collect a liquid grab sample at the end of the treatment system and the samples must be analyzed with the results reported as described in Table 2 below.

Table 2. Effluent Monitoring

Constituent	Unit	Sample Type	Sampling Frequency	Reporting Frequency ²
Flowrate ¹	gpd	Metered	Continuous	Quarterly
TSS ^c	mg/L	Grab	Monthly	Quarterly
BOD	mg/L	Grab	Monthly	Quarterly
Total Nitrogen as Nitrogen	mg/L	Grab	Monthly	Quarterly
Total Dissolved Solids (TDS)	mg/L	Grab	Monthly	Quarterly

- 1) At a minimum, the Discharger must calculate the daily average effluent flow rate at a monthly frequency using total flow for the month divided by the number of days discharging in the month. The Discharger may meter or estimate flow rate based on potable water supply meter readings or other approved method.
- 2) Quarterly is defined as a period of three consecutive calendar months beginning on January 1, April 1, July 1, and October 1.
- c. Solids Disposal Monitoring
- a. Sludge and solid waste shall be removed from screens, sumps, tanks, and ponds as needed to ensure optimal plant operation.
- b. Treatment and storage of sludge shall be confined to the wastewater system property, and shall be conducted in a manner that precludes infiltration of waste constituents into soil in a mass or at concentrations that will violate the groundwater limitations of the General Order.
- c. Any storage of residual sludge, solid waste, or biosolids at the wastewater system shall be temporary, and the waste shall be controlled and contained in

- a manner that minimizes leachate formation and precludes infiltration of waste constituents into soils in a mass or at concentrations that will violate the groundwater limitations of this General Order.
- d. Residual sludge, and solid waste shall be disposed of in a manner approved by the appropriate Regional Water Board's Executive Officer and consistent with the Consolidated Requirements for Treatment, Storage, Processing, or Disposal of Solid Waste. (Cal. Code Regs., tit. 27 div. 2)
 - e. Use and disposal of biosolids shall comply with the USEPA Part 503 Biosolids Rule. (40 C.F.R. § 503.)
 - f. Report of handling and disposal of solids (e.g., screenings, grit, sludge, biosolids, etc.) generated at the wastewater treatment system is required. Records shall include the name/contact information for the hauling company, the type and amount of waste transported, the date removed from the wastewater treatment system, the disposal facility name and address, and copies of analytical data required by the entity accepting the waste.
- d. Groundwater Monitoring. The Discharger must monitor groundwater as described in Table 3 below.

Table 3. Groundwater Monitoring¹

Constituent²	Unit	Sample Type	Sample Frequency³	Reporting Frequency⁴
TDS ⁵	mg/L	Grab	Quarterly	Annual
Nitrate as Nitrogen ⁵	mg/L	Grab	Quarterly	Annual

Table Notes:

- 1) The annual report must include a map showing monitoring well locations, approximate depth to groundwater, and identify whether the wells are used for supply or monitoring.
 - 2) The Discharger can assess monitoring for TDS and nitrate by after eight reporting periods (Typically two years of quarterly sampling is required for adequate characterization) and submit a request in writing a reduction in monitoring frequency, as appropriate, to the San Diego Water Board.
 - 3) Quarterly is defined as a period of three consecutive calendar months beginning on January 1, April 1, July 1, and October 1.
 - 4) Annual is defined as a period of 12 consecutive calendar months beginning in January and ending in December.
 - 5) The Discharger must collect samples from the monitoring well network as proposed.
- e. Wastewater Storage Pond Monitoring. The Discharger must monitor the wastewater storage pond system, i.e. percolation ponds, when the pond is in use. Wastewater storage pond monitoring must consist of the following:

Table 4: Wastewater Storage Pond Monitoring

Constituent	Units	Sample Type	Sample Frequency ¹	Reporting Frequency *
Dissolved Oxygen	mg/L	Grab	Quarterly	Quarterly
Freeboard ²	Feet	NA	Quarterly	Quarterly
Odors	NA	NA	Quarterly	Quarterly
Berm Conditions	NA	NA	Quarterly	Quarterly

Table Notes:

- 1) Quarterly is defined as a period of three consecutive calendar months beginning on January 1, April 1, July 1, or October 1.
- 2) Sufficient freeboard shall be maintained at all times in ponds to provide adequate storage capacity and prevent wastewater spills. Freeboard shall be measured vertically from the lowest elevation of the pond berm to the pond water surface.

6. VOLUMETRIC MONITORING REQUIREMENTS.

The Discharger must report the following information in accordance with section 3 of the Water Quality Policy for Recycled Water.

- a. Influent Monitoring. Monthly volume of wastewater collected by the wastewater treatment plant.
- b. Production. Monthly volume of wastewater treated, specifying level of treatment.
- c. Discharge. Monthly volume of treated wastewater discharged to each of the following, specifying level of treatment:
 - i. Inland surface waters, specifying volume required to maintain minimum instream flow.
 - ii. Enclosed bays, estuaries and coastal lagoons, and ocean waters.
 - iii. Natural systems, such as wetlands, wildlife habitats, and duck clubs, where augmentation or restoration has occurred, and that are not part of a wastewater treatment plant or water recycling water treatment plant.
 - iv. Underground injection wells, such as those classified by U.S. EPA's Underground Injection Control Program, excluding groundwater recharge via subsurface application intended to reduce seawater intrusion into a coastal aquifer with a seawater interface.
 - v. Land, where beneficial use is not taking place, including evaporation or percolation ponds, overland flow, or spray irrigation disposal, excluding pasture or fields with harvested crops.

The Discharger must submit volumetric data required by this provision of the NOA for the previous calendar year to GeoTracker by April 30 of each year.

7. CHANGE IN OWNERSHIP

When control or ownership changes of the Facility or wastewater disposal areas, the Discharger must notify the succeeding owner or operator of the existence of this General Order by letter, a copy of which must be immediately forwarded to the Executive Officer for the San Diego Water Board.

8. ENFORCEMENT

The Discharger must review and ensure this NOA completely and accurately reflects the Facility's discharge. If the Discharger violates the terms or conditions listed in this NOA or the General Order, the San Diego Water Board may take enforcement action, including assessment of administrative civil liability. Prior to allowing changes to the wastewater strength, generation rate, or method of waste disposal, the Discharger must contact the San Diego Water Board to determine if submittal of a Report of Waste Discharge is required.

The Discharger is responsible for compliance with the General Order and this NOA. Failure to comply with the requirements in the General Order and this NOA could result in an enforcement action as authorized by provisions of the Water Code. Discharges of wastes other than treated domestic wastewater are prohibited.

9. ANNUAL FEES AND SAN DIEGO WATER BOARD CONTACT INFORMATION

The discharge has a threat to water quality and complexity rating of 2-B. The annual fee corresponding to a threat to water quality and complexity of 2-B can be found using the current fee schedule.² The fee is due and payable on an annual basis until enrollment in the General Order is terminated by the San Diego Water Board. If the wastewater discharge ceases, the Discharger must provide written notice to enable the San Diego Water Board to terminate enrollment and billing.

Please review the conditions specified in this NOA and applicable sections of the General Order and notify the San Diego Water Board if for any reason the Discharger is not able to comply with any of the conditions specified.

Please submit all future monitoring reports and documents required by this NOA and the General Order to the San Diego Water Board by email. Email submittals must include a signed cover/transmittal letter with the facility name, facility contact information, and reference code **247809:CKomeylyan**. Monitoring reports, documents, and other email submittals must be sent to

² https://www.waterboards.ca.gov/resources/fees/water_quality/

sandiego@waterboards.ca.gov. Routine email correspondence may be sent directly to individual San Diego Water Board staff members.

Documents that are 50 megabytes or larger should be transferred to a compact disc (CD) or universal serial bus (USB) drive and mailed to the San Diego Water Board. Board staff may request that specific individual items such as appendices to large/complex technical reports and/or large drawings, grading plans, or maps continue to be provided in paper format. If you have specific questions about email submittal procedures, please contact our Mission Support Services Unit at 619-516-1990, or via email at sandiego@waterboards.ca.gov.

Please contact Ms. Sherrie Komeylyan at 619-521-3366 or via email at Chehreh.Komeylyan@waterboards.ca.gov if you have any questions or comments.

Respectfully,

David W. Gibson
Executive Officer

cc (via email): Jeff Pape, JPape@Dudek.com

DWG:rnm:bn:bb:ck

Tech Staff Info & Use

Regulatory Measure ID: 442123 (NOA)

Regulatory Measure ID: 398403 (WQ 2014-0153-DWQ)

Order No.: WQ 2014-0153-DWQ

Place ID: 247809

Party ID: 33968